MUDIWA MINING SYNDICATE
versus
SAN HE MINING
and
QIAO CHONGNAN
and
PETROL MAKAKI
and
Z.R.P CHIEF COMMANDING GUREWE DISTRICT CHIEF SUPRETENDENT CHANENGETA N.O
and
Z.R.P COMMISSIONER GENERAL

HIGH COURT OF ZIMBABWE
TAKUVA J
HARARE 15 August 2024 and July 30 July 2025

Court Application

T Jacob for the applicant
T Tabana with Marwa for the first, second & third respondent
T. Chimunoko for the fourth & fifth respondent

TAKUVA J: This is an urgent chamber applications for spoliation and declaratory relief. The applicant seeks the following relief;

> "(a) The first to fourth respondents and all those claiming occupation through them shall restore the *status quo ante* by returning all the Chrome ore they have taken from the applicant with (sic) five days from the date of the order .
> (b) the first to fourth respondents and all those claiming occupation through them shall vacate forthwith from the reserved area coded as MSC001 by the Ministry of Mines and Mining Development in Guruve, together with all their goods and chattels and failing which the Sheriff shall eject the respondents aforesaid together with all persons claiming occupation through them from the said property.
> (c) the first to fourth respondents shall pay cost of suit on a higher scale jointly and severally one paying the other to be absolved."

THE FACTS

In 2017 the applicant applied for a special grant and the application is still pending. On the other hand the first, second and third respondents have rights in SPECIAL MINING GRANT NO. 6850 where they are conducting mining operations and had stock piled their chrome ore within

their special grant area. A dispute arose with the applicant when the applicant sought to block the first, second and third respondent's entry into their mining location.

The impose was resolved by the Provincial Mining Director for Mashonaland Central Province who directed the police to ensure that applicant does not deny the first, second and third respondent s access to their mining location at Special Grant 6850. The PMD also directed the police to ensure that the first, second and third respondents were not disturbed from enjoying their rights over their registered mining location. In compliance with the PMD's directive, the police attended at the mining location.

Applicant who was not amused by this development then approached this court for spoliation using the Urgent Chamber Book. Details of his complaints are captured in his founding affidavit in which it is contended that the applicant has been carrying out its exploration activities since 2017. It has discovered and piled up about 65 000 tons of chrome ore. The applicant has been in peaceful and undisturbed possession of both the reserved site and chrome ores for years. This assertion is strongly disputed by first to third respondents who claim that they have been carrying out mining activities by virtue of special grant 6850 and the applicant was never in peaceful and undisturbed possession of the ore.

Further respondents contended that the applicant is illegally occupying the area covered by SG6850.

ISSUE AND THE LAW

The sole issue for determination by this Court is whether or not the applicant has satisfied the requirements for spoliation. In *Nino Bonino* v *Delange 1906S1*20 at page 122, the court outlined the scope of the *mandamus van spolie* as follows

> "It is a fundamental principle that no man is allowed to take the law into his own hands. No one is permitted to dispose another forcibly or wrongfully against his consent of possession of property whether movable or immovable. If he does so the court will summarily restore the status *quo ante* and will do that as a preliminary to any inquiry or investigation into the merits of the dispute."

See also *Botha* and *another* v *Barret* 1996 (2) ZLR 73(5) where the court enunciated the essential elements to be fulfiled in an application for spoliation as follows:

> "It is clear law that in order to obtain as spoliation order two allegations must be made and proved. These are
> (a) That the applicant was in peaceful and undisturbed possession of the property, and
> (b) That the responded deprived him of the possession forcibly or wrongfully against this consent."

Before an order for *mandamus van spolie* may be issued an applicant must establish that he was in peaceful and undisturbed possession and was deprived illicitly. These essentials must be proved and the *onus* is in the applicant to prove these elements.

At the beginning of the hearing, it became clear to the court that the location of the site on which the ore was stored and removed was strongly disputed. With the consent of all parties I made the following order;

> "1. The matter be and is hereby postponed sine die pending the production of a Survey Report by the PMD within seven days from the date of this court order
> 2. the PMD's report must include *inter-alia*, the location of the ore in dispute and the holder of mining rights over that location.
> 3. the parties and/ or their legal practitioners must physically attend the inspection *in loco.*
> 4. the applicant's Legal Practioners must file and serve heads of argument within two days of receiving the report from the PMD.
> 5. the respondent's legal practitioners must file heads of argument within three (3 days) of receipt of the applicant's heads of argument.
> 6. the court thereafter will prepare judgment."

This order was complied with in toko and the PMD submitted his report. His findings are as follows;

> "1. San HE's activities are within Special Grant 6850 that was registered to Caftanise Investments Pvt Ltd on the 31st of May 2018 and currently under renewal.
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> 2. SAN HE Mining Pvt Ltd has an ore stock pile site within Caftanise Investments Pvt Ltd's Special Grant Number 6850. At the time of the visit there was no chrome ore stock pile on this site as San He had loaded it away.
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> 3. Mudiwa Mining syndicate do not have a Special Grant license yet, but an application that is yet to be determined.
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> 4. Mudiwa Mining Syndicate's application position over pegs ZIMASCO Pvt Ltd's block of claims, MEMA 1 Registration Number 1279 BM a prior pegger.
>
> 5. Mudiwa Mining Syndicate's, mining activities are within and outside their application position, being;
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> (a) A cleared site within their application position allegedly used as an ore stockpile site. This site had no ore stock piled and had no signs of ore having been stock piled nor loaded from it at some point in time. However, Mudiwa Mining Syndicate alleged that SAN HE took away their 650 tonnes of ore from this site.
>
> (b) An ore mining site that lies outside their mining location.

(c) A camp site and processing facility that lies outside their application position but on ZIMASCO Pvt Ltd's block of claims Regent Registration Number 1256 BM.

(d) This campsite comprises 25 screening tables, one spiral classifier, two water tanks 2 generators, one wooden cabin for workers accommodation, one front end loader and tip per trucks. Also on site were five workers, about five tonnes of chrome concentrate and about twenty tonnes of Chrome concentrate and about 20 tonnes of waste dump.

(e) A gate by the stream that lies outside their application position but on ZIMASCO Pvt Ltd's block of claims REGENT REGISTRATIONNUMBER 1256BM. This gate blocked the only access to mining locations in the area and could have been the source of misunderstanding between the two parties.

ISSUES NOT AGREED BY THE PARTIES.

2. MUDIWA MINING SYNDICATE alleged that SAN HE took away their 650 tonnes of ore from an alleged ore stock pile site on the application position. SAN He denied the allegations. Instead SAN HE alleged that they collected ore from their stock pile within CAFTANISE INVEST Pvt Ltd SPECIAL GRANT No. 6850 where they alleged they work on.

3. SAN HE alleged that MUDIWA MINING SYNDICATE stock piled some ore observed close to SAN HE's stock pile site by the boundary line of CAFTANISE SPECIAL GRANT 6850 and ZIMASCO Pvt Ltd's block of claims Regent Registration Number 1256BM, near to Mudiwa Mining Syndicate's campsite and [processing facility. Mudiwa Mining Syndicate denied the allegations and said that the ore does not belong to them.

CONCLUSION.

1. "SaN He's activities are on CAFTANISE INVESTMENTS Pvt Ltd's Special Grant Number 6850. MUDIWA MINING SYNDICATE has an application for a Special Grant that is pending processing.
2. Mudiwa Mining Syndicate's application position over laps ZIMASCO Pvt Ltd's block of claims Memo 1 Registration No. 1279BM, a prior pegger.
3. Mudiwa Mining Syndicate's mining site is outside its application position.
4. Mudiwa Mining Syndicate's composite and processing facility are outside their applicateion position and on ZIMASCO Pvt Ltd's Block of claims Regent Registration Number 1256BM
5. Attached here to please find a survey diagram on the matter."

At the bottom of the diagram there are comments that are relevant to the issue *in casu*. It is noted by the surveyor that:

"1. Mudiwa Mining Syndicate temporary positions are shown by yellow pins and the initial M

2. Craftanise Investments P/L permanent beacon positions are shown by green pins with the initial SH.
3. Source of Ore positions of stock piles and camp positions are shown on the diagram.
4. The boundary positions shown on the diagram were extracted from the above stated application positions and registration positions respectively.
5. Mudiwa Mining Syndicate application is over pegging Zimasco (Pvt) Ltd block named Mema one Registration number 1279 BM as shown
6. On 22 July 2024 it was observed that Mudiwa Mining Syndicate was moving ore from (Mudiwa Ore source) to the position stated (Ore stock pile on ground) and were instructed not to mix it with CAFTANISE ore.
7. The gate was identified and surveyed or the 22 July 2024 but was no longer there as of the 22 August 2024
8. On 22 July 2024 there was a stock pile of ore on Caftanise ore stock pile position and also on the same date there was no ore on (Mudiwa Ore stock pile position.)."(My emphasis)

The report is useful in the resolution of the first requirement that namely, that the applicant was in peaceful and undisturbed possession of the property. The onus is on the applicant to prove this avernment on a balance of probability. Applicant's submission in this regard is that it was in peaceful and undisturbed possession of the area reserved for it pending the approval of its application. The ore was in Applicant's reserved area coded MSC001 by the Ministry of Mines and Mining Development. Applicant claimed to have stock piled about 65 000 tonnes of Chrome ore when first to fourth respondent's without a court order invaded the said reserved area on the sixth of august 2024 where they made a hostile takeover of the area.

According to the map attached to the PMD's report the "area" is huge and comprises three claims belonging to three different entities as follows;

(a) Mudiwa Mining Syndicate Special Grant Application

(b) Caftnise Investment P/L Special Grant.

(c) ZIMASCO (Pvt) Ltd MEMA 1 REG 1279 BM

(d) ZIMASCO (Pvt) Ltd REGENT 9 REG 1256 BM.

These blocks lie next to each other except that as is apparent from the map Mudiwa Mining Syndicate area is over pegging Zimasko (Pvt) Ltd named Mema 1 registration number 1279BM. Applicant alleged that its ore was piled inside its area on a site labelled "MUDIWA ORE STOCK PILE POSITION." It should be noted that this is also inside the ZIMASCO 1279 block …..as the two areas overlap. According to the comments by the PMD, on 22 July 2024, it was observed that applicant was moving ore from a position shown as "Mudiwa Ore Source" to the position stated

("ore stock pile on ground") and were instructed not to mix it. The latter position is outside applicant's claim while the former position is within its Special Grant application. Applicant has denied possessing ore at "ORE STOCK PILE ON GROUND."

There are three stock pile positions that are very close to each other. Two are outside applicant's area while one is inside. According to the applicant the ore it possessed was inside at a position marked "Mudiwa Ore Stock Pile position." Surprisingly in one of his findings the PMD states;

> "5 (a) A cleared site within their application position allegedly used as an ore stock pile site. This site has no ore stock pile and had no signs of ore having been stock piled nor loaded from it at some point in time. However Mudiwa Mining Syndicate alleged that San He took away their 650 tonnes of ore from this site." (The underlining is mine).

The question becomes if indeed the respondents removed such a huge amount of ore from this site, why is there no such evidence? More puzzling is why the applicant failed to document this important site in their case? I say so because applicant has attached photographs of trucks and other heavy equipment removing ore from "a site." The point I am making is there is no link between these trucks and the precise site among many sites in the area with chrome ore. In light of the fact that the *onus* lies on the applicant to prove that it was in peaceful and undisturbed possession of the ore on this "site" its representatives including their lawyer should have gathered documentary evidence from the texture of the ground and or tyre tracks on the 22 August 2024.

Applicant's criticism of the PMD is based on his alleged bias and that respondents wasted good energy on the irrelevant question of ownership. The applicant should have ceased this golden opportunity of a "ground visit" to gather sufficient evidence to prove its case on a balance of probabilities. There is no dispute that the trucks removed the ore from the area on the 6th August 2024. What is being strongly disputed is from which "site" was the ore taken?

I have no reason to doubt the credibility of the PMD and his team. In any event all the parties were represented during the ground visit. Observations were made and recorded openly. The evidence of trucks belonging to the respondent would have greatly bolstered the applicant's case if the mining locations were not in close proximity. *In casu* there is nothing amiss or suspicions about respondents' trucks driving in and out of this area in that respondents have a right of access in the course of carrying out their mining activities. In the circumstances of this case their presence becomes colorless.

Further criticism of the PMD's report is that

1. The diagram attached to the report does not match what is in the Ministry of Mines & Mining Development's CADASTRAL SYSTEM in terms of the name of the occupants of certain areas.
2. The report makes conclusions and findings of fact when it does not tell the court how it made such findings. It assumed the court's role.
3. The PMD does not even enlighten the court on how it regards the first respondent and Caftanise as one.

In my view the difference in the two diagrams if any does not affect the issue of who between the two had peaceful and undisturbed possession of the chrome ore in question. The applicant should have brought a copy of the diagram it claims to be different. The conclusions and findings of fact were derived from records and observations made on the scene during the site visit in which the applicant participated. Finally, the relationship between first respondent and Caftanise was never an issue. In any event it has been clarified in the pleadings.

In view of the above, I find that the applicant was never in peaceful and undisturbed possession of the chrome that was removed by the first respondent. In that regard the first requirement of spoliation has not been established. In light of this finding there is no need to enquire into the second requirement of spoliation.

Accordingly it is ordered that the application for spoliation be and is hereby dismissed with costs.

TAKUVA J…….

Jits Law Chambers, applicant's legal practitioners
Tabana and Marwa Legal Practitioners first, second and third respondent's legal practitioners
Civil Division of the Attorney General, fourth and fifth respondent's legal practitioners